



# Homeschooling in Arizona

A Legal Rights & Resources Guide  
for Diverse Families

For Black, Brown, LGBTQ+, and special-needs  
homeschool & hybrid-learning families

A SEAT Squad Digital Download · Updated June 2026

### **Important: This Is Not Legal Advice**

This guide is for informational purposes only. It is not legal advice. Laws change frequently. **Always verify against primary sources.** Consult an Arizona-licensed attorney for complex situations.

This guide reflects laws and programs as of **June 2026**.

## **How to Use This Guide**

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Everything a diverse homeschooling family needs to know to legally homeschool in Arizona, access the state's universal ESA program (the most expansive in the country), navigate special needs services, and understand the legal landscape for LGBTQ+ families.

### **What's Inside**

1. **Your Homeschooling Option** — Arizona's homeschool law
2. **Home School Requirements** — Affidavit, subjects, no testing
3. **The ESA (Empowerment Scholarship Account)** — Universal, ~\$7,000+/year for all students
4. **Special Needs Provisions** — IEP rights, ESA for disabilities
5. **LGBTQ+ Family Considerations** — What AZ's laws mean for your family
6. **Inclusive Resources** — Co-ops, organizations, support networks
7. **Templates & Checklists** — Affidavit checklist, ESA application tracker

## SECTION 1

# Your Homeschooling Option in Arizona

Arizona has **one legal option** for homeschooling, regulated at the **county** level. But the bigger story is Arizona's **Empowerment Scholarship Account (ESA)** — the most expansive school choice program in the country, available to *all* K-12 students regardless of income, disability status, or prior enrollment.

### Arizona Homeschool at a Glance

| Requirement                | Arizona                                                   |
|----------------------------|-----------------------------------------------------------|
| Legal basis                | A.R.S. § 15-802(B)                                        |
| Compulsory attendance ages | 6–16                                                      |
| Notification               | Yes — Affidavit of Intent to county school superintendent |
| Parent qualification       | None required                                             |
| Required subjects          | Reading, grammar, math, social studies, science           |
| Testing                    | Not required                                              |
| Record keeping             | Not specified by statute (but recommended)                |
| Immunization               | Not required for homeschoolers                            |

**Arizona is the easiest state to homeschool in among our guide series.** No parent qualification, no testing, no immunization requirement, and a universal ESA that provides ~\$7,000+ per year for educational expenses. The only requirement: file an affidavit and teach five subjects.

## SECTION 2

# Home School Requirements

### Step 1: File Your Affidavit of Intent

Within **30 days** of starting your homeschool program, you must file an **Affidavit of Intent to Homeschool** with the **county school superintendent** where you live.

The affidavit must include:

- Child's name and date of birth
- Parent/guardian address
- Statement that the child is being instructed at home

Find your county superintendent at [azed.gov](http://azed.gov) or search "[your county] school superintendent Arizona."

### Step 2: Teach the Required Subjects

Arizona requires that your homeschool instruction cover five subjects:

1. **Reading**
2. **Grammar**
3. **Mathematics**
4. **Social studies**
5. **Science**

You can teach these however you like — textbooks, living books, online courses, unit studies, hands-on projects. The statute specifies subjects but not content, so you have complete freedom in *how* you teach, including culturally responsive materials and inclusive content.

### Step 3: That's It

Arizona has **no testing requirement, no portfolio requirement, no annual evaluation, no attendance record requirement, and no immunization requirement** for homeschoolers. Once you file the affidavit and teach the five subjects, you are in compliance.

### What Your Homeschooled Student CAN Access

AZ homeschool students have the right to:

- **Participate in interscholastic activities** (sports, clubs) at their local public school (A.R.S. § 15-802.01)
- **Dual enrollment** at community colleges and universities
- **AZ Merit testing** at public schools if desired
- **ESA funds** (see Section 3) — this is the major advantage of Arizona

## SECTION 3

# The Empowerment Scholarship Account (ESA)

Arizona's Empowerment Scholarship Account (ESA) is the **most expansive school choice program in the United States**. It is **universal** — every K-12 student in Arizona is eligible, regardless of income, disability, prior school enrollment, or zip code. This is the program other states are modeling their ESAs after.

## Who Is Eligible

- **All Arizona K-12 students** — universal eligibility (no income requirement, no disability requirement, no prior public school enrollment required)
- Students must be Arizona residents
- Students must be at least 5 years old and eligible for kindergarten through grade 12

## How Much Funding

ESA funding varies by year and student characteristics, but is approximately **\$7,000–\$8,500 per student per year**. Students with special needs may receive significantly more based on their disability classification.

**Verify current year funding** at [azed.gov/esa](https://azed.gov/esa)

## What ESA Funds Can Cover

- **Curriculum** and instructional materials
- **Tutoring** and instructional services
- **Online courses** and virtual school programs
- **Educational therapies** (speech, OT, PT, behavioral)
- **Private school tuition**

- **Educational technology** (devices, software, apps)
- **Standardized testing fees**
- **Books and supplies**
- **Community college and university courses** (dual enrollment)
- **Approved educational services and providers**

### CAN AZ ESA FUNDS BE USED FOR SEAT SQUAD / ETSY DIGITAL DOWNLOADS?

Yes. ESA funds can be used for curriculum, instructional materials, and educational resources — including digital downloads like workbooks, unit studies, and printable resources. Arizona's ESA program is particularly flexible compared to other states.

## ESA vs. Homeschool — Key Distinction

In Arizona, you can be **both** a homeschooler *and* an ESA recipient, but there's an important distinction:

- **Homeschool (affidavit):** You file with the county, teach the five required subjects, and have no testing requirements.
- **ESA:** You receive state funds in an account you manage. ESA students are technically **not** classified as homeschoolers — they are "ESA recipients." This means ESA students may be subject to different rules than traditional homeschoolers.
- **Choose carefully:** If you want ESA funds, you apply through the AZ Department of Education's ESA portal. If you want pure homeschooling with no state funds, file the affidavit with the county. You can switch between the two, but understand the classification differences.

## How to Apply for ESA

### **ESA APPLICATION CHECKLIST**

- ☐ Create an account on the AZ DOE ESA portal at [azed.gov/esa](https://azed.gov/esa)
- ☐ Complete the ESA application
- ☐ Provide proof of Arizona residency
- ☐ Provide student's birth certificate or age documentation
- ☐ Choose whether to also file a homeschool affidavit (if you want both)
- ☐ Once approved, receive your ESA debit card or account access
- ☐ Begin using funds for approved educational expenses



## SECTION 4

# Special Needs Provisions

## ESA for Students with Disabilities

Arizona's ESA is particularly valuable for students with disabilities because:

- Funding can be **significantly higher** for students with special needs — based on disability category and service needs
- Funds can be used for **therapies directly** (speech, OT, PT, behavioral) — unlike Georgia's GSNS which pays the school
- No prior public school enrollment required (unlike NC and GA)
- Parents have **direct control** of the funds — you choose the providers

## IEP Rights for AZ Homeschoolers

- **The IEP remains valid** as documentation of your child's needs
- **Child Find** — school districts must identify and evaluate children who may need special education, even homeschooled children
- **You can request services** from your local school district even as a homeschooler, though the district is not always required to provide them
- **ESA funds replace IEP-based services** for many families — instead of going through the school district for therapies, you use ESA funds to hire providers directly

### PRACTICAL ADVICE

- **Arizona is the best state in our guide series for special-needs families.** The ESA is universal, flexible, and parent-directed. You control the funds.
- **Keep documentation** of all diagnoses, IEPs, and evaluations for ESA funding level determination

- **Apply early** — ESA processing can take weeks
- **Use ESA funds for therapies** that insurance may not cover

## SECTION 5

# LGBTQ+ Family Considerations

Arizona's legal landscape for LGBTQ+ families is **moderate** — better than Florida and Tennessee, but without comprehensive statewide protections. Phoenix and Tucson have active, vibrant LGBTQ+ communities. The state has a unique history of Indigenous gender-variant traditions.

## No "Don't Say Gay" Equivalent

Arizona does **not** restrict classroom instruction on sexual orientation or gender identity. As a homeschooler, you are completely free to include LGBTQ+ content.

## SB 1138 — Transgender Healthcare (2022)

Arizona passed SB 1138 in 2022, which **restricts gender-affirming surgery for minors**. The law prohibits surgeons from performing gender-affirming surgical procedures on anyone under 18. It does **not** ban hormone therapy or puberty blockers — only surgical interventions.

**What this means:** Transgender youth in Arizona can still access hormone therapy and puberty blockers, but surgical options are restricted until age 18. This is less restrictive than Florida and Tennessee's bans, but still a barrier.

## No Bathroom Bill, No Drag Ban, No DEI Restriction

Unlike Florida and Tennessee, Arizona does **not** have:

- A bathroom/restroom law targeting transgender people
- A restriction on drag performances

- A prohibition on state funding for DEI efforts

## Anti-Discrimination Protections

Arizona provides **limited statewide protections**. Federal Bostock protections apply to employment. Several cities have local ordinances:

- **Phoenix** — anti-discrimination in employment, housing, public accommodations
- **Tucson** — comprehensive protections
- **Tempe, Flagstaff, Sedona** — local protections

71% of Arizona residents support non-discrimination legislation protecting LGBTQ+ people (2019 polling).

## Conversion Therapy

Banned in Phoenix, Tucson, Tempe, and Flagstaff. No statewide ban.

## Adoption and Parental Rights

- **Adoption:** Same-sex couples can adopt (legal since 2014, *Majors v. Horne*)
- **Same-sex marriage:** Legal since 2014 (*Majors v. Horne* — before *Obergefell*)
- **Foster care:** Same-sex couples can foster

## Indigenous Gender Traditions

Arizona is home to numerous Indigenous nations with long traditions of gender variance and acceptance:

- **Nadleehi** (Navajo) — individuals who transform between genders, historically revered as spiritual healers
- **Wi:k'ovats** (Tohono O'odham) — male-assigned individuals who live as female

- **Hova** (Hopi), **Alyha** (Mohave), and similar traditions across many AZ tribes

These traditions predate Western gender categories by centuries and represent a deep cultural foundation of gender diversity in the region.

## Protective Steps for LGBTQ+ Families

- **Legal documents:** Establish both parents' rights through adoption where available. Consult an AZ family law attorney.
- **Phoenix and Tucson are resource hubs:** Both have prominent LGBTQ+ communities, Pride events (Phoenix Pride since 1981, Tucson Pride since 1977), and family-supportive organizations.
- **Healthcare:** Hormone therapy is still accessible for minors; only surgery is restricted. Identify supportive providers through one-n-ten or local LGBTQ+ centers.
- **Curriculum freedom:** No restrictions — include affirming content freely.
- **Know your city:** Phoenix, Tucson, Tempe, and Flagstaff have local anti-discrimination protections.

## SECTION 6

# Inclusive Resources in Arizona

**Verify all contact information before relying on these resources.**

## Scholarship & Legal Resources

| Resource                           | What they do                                                               | Contact                                                                         |
|------------------------------------|----------------------------------------------------------------------------|---------------------------------------------------------------------------------|
| AZ Dept of Education — ESA Program | Administers the universal Empowerment Scholarship Account                  | <a href="https://azed.gov/esa">azed.gov/esa</a>                                 |
| AZ County School Superintendents   | Receive homeschool affidavits (file with your county)                      | Search "[your county] AZ school superintendent"                                 |
| HSLDA                              | Legal support for homeschoolers (note: conservative Christian orientation) | <a href="https://hslda.org">hslda.org</a>                                       |
| CRHE                               | Inclusive, secular homeschool law info                                     | <a href="https://responsiblehomeschooling.org">responsiblehomeschooling.org</a> |

## LGBTQ+ Family Resources

| Resource                         | What they do                                                                | Contact                                     |
|----------------------------------|-----------------------------------------------------------------------------|---------------------------------------------|
| one-n-ten                        | Phoenix-based LGBTQ+ youth organization. Community center, support, events. | <a href="https://oneten.org">oneten.org</a> |
| Tucson Pride / Southern AZ Pride | Community events and advocacy in Tucson                                     | Search for current contact                  |

|                                     |                                                            |                  |
|-------------------------------------|------------------------------------------------------------|------------------|
| PFLAG<br>Phoenix/Tucson<br>chapters | Family support for LGBTQ+ people and families              | pflag.org        |
| Phoenix Pride                       | Annual Pride event and community organization (since 1981) | phoenixpride.org |

## Cultural & Community Resources

| Resource                               | What they do                                                    | Contact                                               |
|----------------------------------------|-----------------------------------------------------------------|-------------------------------------------------------|
| NBHE                                   | National Black Home Educators<br>— AZ presence                  | nbhe.net                                              |
| AZ Hispanic<br>homeschool groups       | Active in Phoenix, Tucson.<br>Bilingual/culturally responsive.  | Search Facebook                                       |
| Phoenix<br>secular/inclusive co-ops    | Metro Phoenix has multiple<br>inclusive co-ops                  | Search "Phoenix secular<br>homeschool" on<br>Facebook |
| Native American<br>education resources | Tribal education departments and<br>cultural education programs | Search by nation/tribe                                |

## Special Needs Resources

| Resource                                                                    | What they do                                                                                 | Contact                |
|-----------------------------------------------------------------------------|----------------------------------------------------------------------------------------------|------------------------|
| Raising Special Kids                                                        | AZ's parent training and<br>information center for families of<br>children with disabilities | raisingspecialkids.org |
| Arizona Center for Disability<br>Law                                        | Legal advocacy for people with<br>disabilities                                               | azdisabilitylaw.org    |
| AZ Dept of Economic<br>Security — Division of<br>Developmental Disabilities | Services for individuals with<br>developmental disabilities                                  | des.azd.gov            |

**Finding inclusive co-ops:** Phoenix and Tucson have active homeschool communities. Search "Phoenix secular homeschool" or "Tucson inclusive homeschool" on Facebook. Arizona's large Hispanic population means culturally responsive and bilingual co-ops are available, especially in Phoenix metro.



## SECTION 7

# Templates & Checklists

### Homeschool Affidavit Checklist

- ☐ Find your county school superintendent's office
- ☐ Obtain the Affidavit of Intent form (check county website or AZED.gov)
- ☐ Fill in child's name, date of birth, parent address
- ☐ Sign the affidavit
- ☐ Submit within 30 days of starting homeschool
- ☐ File a new affidavit if you move to a different county

### ESA Application Tracker

| Step                      | Complete?                | Date | Notes |
|---------------------------|--------------------------|------|-------|
| Create ESA portal account | <input type="checkbox"/> |      |       |
| Submit application        | <input type="checkbox"/> |      |       |
| Provide residency proof   | <input type="checkbox"/> |      |       |
| Provide birth certificate | <input type="checkbox"/> |      |       |
| Approved                  | <input type="checkbox"/> |      |       |
| ESA funds received        | <input type="checkbox"/> |      |       |

### Required Subjects Tracker

| Subject | Curriculum / approach | Progress notes |
|---------|-----------------------|----------------|
| Reading |                       |                |

|                |  |  |
|----------------|--|--|
| Grammar        |  |  |
| Mathematics    |  |  |
| Social studies |  |  |
| Science        |  |  |

FOR THE SELLER

## Verification Checklist

- ☐ Verify ESA funding amount for current year
- ☐ Verify ESA application process and portal URL
- ☐ Verify affidavit filing process (county-specific)
- ☐ Verify SB 1138 is still in effect (surgery ban only?)
- ☐ Check for new LGBTQ+ legislation since June 2026
- ☐ Verify all resource organization contact info
- ☐ Update "as of" date on cover page
- ☐ Replace SEAT Squad URL and generate QR code



## Need Guides for Other States?

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This Arizona guide is part of a growing series of state-by-state homeschooling legal guides for diverse families.



**[Your SEAT Squad sign-up URL here]**

### What SEAT Squad Members Get

- ♥ Florida, Georgia, North Carolina, Tennessee guides — available now
- ♥ Free inclusive homeschooling resource directory
- ♥ Banned book reading lists by grade level
- ♥ Financial literacy workbooks for diverse families
- ♥ Monthly legislative updates for diverse families

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